SOLOMON'S TREASURE (PVT) LTD

Versus

MIPPLE TRADING COMPANY (PVT) LTD

And

THE PROVINCIAL MINING DIRECTOR (MASHONALAND CENTRAL PROVINCE)

And

OFFICER COMMANDING ZIMBABWE REPUBLIC POLICE (MASHONALAND CENTRAL-BINDURA)

HIGH COURT OF ZIMBABWE

CHIRAWU-MUGOMBA J

Harare, 14 October 2025

S. M. BWANYA, for the applicant

P. MUZVUZVU and E. HAMUNAKWADI, for the first respondent

M. NYIKA -CHIMHEPO, for the second and third respondents

URGENT CHAMBER APPLICATION

CHIRAWU-MUGOMBA J: On the 14th of October 2025, I granted a provisional order in favour of the applicant as follows.

TERMS OF FINAL ORDER SOUGHT

1. The application be and is hereby granted and for the avoidance of doubt, the citation of the respondents is as follows:-
    a. Mipple Mining Company (pvt) Ltd – First respondent
    b. Provincial Mining Director, Mashonaland Central Province – second respondent
    c. Officer Commanding Zimbabwe Republic Police , Mashonaland Central (Bindura) –Third respondent
2. The first respondent's access, presence, use and control of the applicant's premises without consent or a court order be and is hereby declared unlawful.

3. It is declared that the applicant has sole and exclusive control of the mining site and the infrastructure thereon pending the determination of the application for review under HCH 4401/25.
4. The second respondent be and is hereby ordered to cancel any registration certificates issued over the same mining site in favour of the second respondent within 14 days of receipt of this order.
5. The first respondent be and is hereby ordered to remove any wooden cabin or other infrastructure erected on the applicant's premises.
6. The first respondent pay the costs of suit on a legal practitioner scale.

INTERIM RELIEF GRANTED

1. The first and second respondents be and are hereby interdicted from interfering in any manner whatsoever, with the applicant's access, use, and control of mining claims known as Xmas 3 registration number 27283BM and Xmas 6 registration number 23016BM.
2. That the first respondent be and is hereby ordered to remove its locks and security guards from the applicant's premises located at Summerdale Farm, Mazowe forthwith upon service of this order and should they fail, refuse or neglect to do so, the Sheriff of the High Court is authorised to remove them.

SERVICE OF PROVISIONAL ORDER

The applicant's legal practitioners be and are hereby authorised to serve the order on the respondents.

Before delving into the matter, let me hasten to state that there seems to have been some confusion in relation to the citation of the parties. The one I resorted to is as it appears in the provisional order sought and in an earlier judgment . Although the matter had been placed before me as a 'composite' one, incorporating an urgent chamber application and a counter court application, under HH-609-25 dated the 8th of October 2025, I split the two applications. The consolidated record however still is confusing because of the 'composite' application.

I now move to deal with the urgent chamber application.

The matter was placed before the court as an urgent chamber application for a temporary (interim) interdict to deal with the unlawful interference of the applicant's mining operations by the first respondent based on what is termed an unlawful decision of the second respondent which is now subject of review proceedings under HCH 4401/25. The applicant avers that the matter is urgent for the following reasons. The cause of action arises from a determination made by the second respondent on the 28th of August 2025 which came to the attention of the applicant on the 29th of August 2025. Following this decision, the first respondent and its staff have threatened to take as their own mining dump(ore) which the applicant has mined over the past months. This includes a threat to place cabins at the site where the ore is stored for processing without the consent of the applicant. The first respondent has also stationed guards at the applicant's other mining claims which are not named or covered in the injunction issued by the second respondent. That particular injunction lapsed when the order of the 28th of August 2025 was made by the second respondent. The actions of the first respondent are prejudicial to the applicant.

The applicant avers that it has established a *prima facie* right for the following reasons. That it has been mining on the said claims since 1997. There is an order of court evicting a prior invader. Prior reports dating as far back as 2011 by the second respondent have declared the applicant as the owner. Mining inspection certificates issued since 1997 indicate that the applicant is the owner and in correspondence issued by the second respondent to the third respondent and other third parties, the second respondent indicates that the applicant is the owner of the disputed sites.

On absence of another remedy, the applicant avers that in the injunction issued by the second respondent dated the 25th of July 2025, the third respondent was is directed to ensure that the applicant does not carry out its operations. The second respondent claims that there is an over peg between Xmas 3 and Xmas 148/9. She does not explain how after so many years, this shift occurred especially in view of the fact that the sites have been inspected every year since 1988. The second respondent is bound by an order of this court in a prior dispute.

In HCH 4401/25, being the application for review, the applicant makes the following averments. That the 2nd respondent's determination in the dispute is unlawful, unreasonable and biased more particularly for the following reasons. That the second respondent seeks to create a map of the mining claims disregarding age old maps issued by her office prior to her recent appointment. The geographical location of mining claims cannot be changed by the

appointment of a new Provincial Mining Director. Her conduct falls short of constitutional requirements on administrative justice as read with s196 of the constitution. That the second respondent departed without lawful cause from a position taken by her office for over twenty years as regards the lawfulness of the applicant's presence and operations on the mine in question. Thus her conduct falls short of the requirements of s3 of the Administrative Justice Act. That the second respondent granted an opposed injunction on the false pretext that it was unopposed despite having received a substantive notice of opposition which she ignored. Her conduct thus falls short of the *audi alterum partem* provisions and demonstrates clear bias in favour of the first respondent. Lastly that the second respondent ignored her own policy as regards the first pegger precedence where there are competing claims. Whilst she admitted that the first respondent pegged claims in 2006, she gave them preferential treatment over a pegger whose claims were demonstrably registered prior.

For good measure, following adjudication of the mining dispute between the applicant and the first respondent, the second respondent drew the following conclusions.

According to s177 of the Mines and Minerals Act, [Chapter 21:05], Xmas 6 and Xmas 3 for Solomon's Treasure P/L have prior rights to Xmas 148/9 for Mipple Trading. Hpwever, considering the above observations, it is clear that there is an overpeg between Xmas 6 and Xmas 3 registration numbers 23016 BM and 2728BM registered in favour of Solomon's Treasure P/L and Xmas 148/9 registration numbers 33181/2 registered in favour of Mipple Trading Company P/L according to the ground positions. The over-peg is however, a product of a shift by Solomon's Treasure P/L from their registration position as shown by the attached survey plan. In light of this, Solomon's Treasure should correct the spatial variance between their ground and registration positions for registration numbers 23016 B and 27283bm such that the ground position should align with the registration position and that the geographical and geometrical positions of the blocks be maintained as at registration Solomon's Treasure must immediately revert back to their place as at registration to avoid over pegging into Mipple Trading blocks or claims. Please find attached survey diagram.

It is against this, that the applicant has filed an application for review.

The application is strenuously opposed by the first respondent. It raises several preliminary issues which are not properly ranked. Nonetheless, I will proceed to rank them. It avers that the application is not **urgent.** That the need to act did not arise on the 29th of August 2025 as claimed. It is not the judgment of the second respondent that triggered urgency. The applicant only approached the court because the first respondent had demanded its ore which had been mined from the registered mining blocks. A letter dated the 25th of July 2025 from the second respondent had alerted the applicant of the presence of the first respondent on the mining blocks and applicant had been prohibited from carrying out mining operations. The applicant was aware of the presence of wooden cabins since

July 2025. The legal practitioner who signed the certificate of urgency did not apply their mind but simply copied and pasted the founding affidavit.

Further that the **application is a nullity for failure to accord the proper notice period to respondents.** The applicant has given the respondents a notice period of three days instead of a *dies induciae* of ten days.

The notice of motion is also defective in that **it does not comply with the rules of this court**. The general heading does not mention the third respondent and it matters not that he is introduced in the founding affidavit. He ought to have been cited since the applicant seeks substantive relief against him. In addition, there seems to be confusion in the citing of the parties.

Further still, the applicant has **failed to exhaust internal remedies** as provided for in s361 of the Mines and Minerals Act, [Chapter *21:05*]. Applicant was supposed to appeal instead of filing an application for review.

On the merits, the determination of the second respondent was supported by a team on the ground and factual findings following a ground visit conducted on the 6th of August 2025. The determination is extant and cannot be suspended by an application for review. That particular application is a nullity as it ought to have cited the Secretary for Mines and Mining Development. The applicant is not likely to suffer irreparable harm. The ore which is in applicant's possession was taken from the first respondent's claims and as such it does not belong to the applicant. The injunction of the 25th of July 2025 has not lapsed. It can only lapse if it is discharged by the mining commissioner or the High Court.

The applicant has not established a *prima facie* right given the determination of the 25th of August 2025 which remains extant. This determination clearly concludes that there was an over pegging between Xmas 6 and Xmas 3 registered in favour of the applicant. The applicant was carrying out mining activities on an area that was not registered in its name.

The applicant cannot claim that it has no other satisfactory remedy as it should have appealed and not applied for review.

A notice of opposition was filed by the second and third respondents. A preliminary issue was raised to the effect that the application is defective as it is not clear whether it is an urgent chamber or an urgent court application. In the heading, it is described as an 'urgent chamber court application'. The second respondent averred that the decision made was reached after a thorough ventilation of the facts at hand, the records in the Ministry files

and a ground survey exercise. This exercise revealed that the applicant had occupied a site different from what it had applied for. The first respondent is rightly entitled to possession of the site that belongs to it. The injunction was put in place to stop both parties from mining and to ensure that no party suffered prejudice. Further that there is no basis for the granting of the order sought by the applicant.

In its answering affidavit, the applicant challenges the board resolution granting authority to one Webster Chinodakufa authority to depose to the opposing affidavit. This is on the basis that he authorised himself to represent the first respondent company. Applicant avers that the preliminary issues raised by the first respondent have no merit. A draft order remains such and the court can grant or refuse it. The form in the rules gives leeway for applicant to put a notice period lesser than ten days. The first respondent cannot speak on behalf of the third respondent and it is trite that where there is variance, the founding affidavit takes precedence. The conduct of the second respondent is irrational, unlawful and corrupt. She is not a substantive appointee and may lack the requisite knowledge of how the office functions. She created a map dated the 28th of August 2025 which contradicts her previous testimony in court. This map contradicts previous reports produced by her office in 2011 and 2022. She alleges that the applicant shifted its position with no evidence of when the shift occurred.

The heads of argument were filed with respect to both the urgent chamber and counter court application.

At the hearing, the parties stood by the papers filed of record including the heads of argument.

At the hearing, Mr *Bwanya* clarified that the first respondent has locked premises where ore is being kept on the basis that it is their ore. The premises are at Summerdale Farm where claims Xmas 3 and 6 are located. In so far as the application for review is concerned, it is at an advanced stage where the next expected pleadings are heads of argument. Mr. *Hamunakwadi* strongly objected to the assertions made and submitted that the application for review had not been served at all and the first time that the first respondent became aware of the application was through the urgent chamber application. On the locks and placement of security guards being placed at the premises, this was through a court order. In the application, the applicant never made any submission on where the ore is being kept. Mr *Bwanya* submitted that the first respondent's counsel's submissions are contradictory. There cannot be security guards placed at an unknown premise. He submitted that there is a map

on page 214 produced by another Provincial Mining Director who was the substantive director. There is also another map for 2022 map. The map on page 214 shows that the applicant shown as Chawatanda Mines is at the centre of other claims. It was produced in court in another matter. There is a variance between the maps submitted by the substantive mining director and the current one, that is the second respondent. The first applicant has never mined on the premises at all. There is no indication as to when the alleged shift occurred. On page 211, in 2022 it was confirmed that the applicant was the rightful owner. If it shifted, when did this occur? One of the two maps must be errenous. On over pegging, the reason why the respondents do not want to call it that is because this issue is resolved by reference as to who came first. There is acceptance that the applicant came in 2000 and the first respondent in 2006. Even if the first applicant has a claim, it cannot affect rights of a miner that came in the year 2000.

Mr *Hamunakwadi* submitted that the dispute is about who is supposed to be operating operating and not who has been there longer. The dispute leading to the determination is not a prior pegger one but about a boundary. The applicant has shifted and the question is whether or not they are the rightful owners. The review itself has no prospects of success and the Ministry of mines is the clear authority on the issue. There must not be emphasis of a substantive over an acting position. It is the same office. After a dispute, there was a physical site visit which confirmed the actual position. The review does not challenge procedure but substantive findings. The applicant therefore ought to have appealed. The relief that the applicant is seeking is incompetent since the mining site is in dispute. He proposed that the best solution is for the mining operations be suspended pending the finalisation of the review. This includes processing of the gold ore. In response Mr. *Bwanya* on the proposal submitted that the first respondents conduct is unlawful but it has taken the law into its own hands. The proposal is not accepted because they have never mined. The applicant is suffering loses since mining is a business.

Ms *Nyika Chimhepo* submitted that the second applicant is opposed to the application and she is also opposed to the application for review. On the shift of mining sites, she submitted that through a site visit, it was noted that the applicant had gone to a different site altogether and started mining and that is why there was over pegging. She was unable to address the court on how this shift occurred. The ground visit confirmed that on the ground from the maps, the location where applicant is mining is one ground and where it is now mining is another place. Applicant has left its own area and has intruded on the area of the first respondent. This was only discovered in 2025. The over pegging came out of the shift.

She admitted that the applicant has all along been mining on the disputed premises and has been paying the requisite licence fees.

In the *ex- tempore* judgment, I dismissed all the preliminary issues raised by the applicant and respondent. I will now deal with the reasons for dismissal of the preliminary issues.

The law on urgency has been set in a plethora of cases. In *Nixris Investments (pvt ltd*) HH-18-16 the requirements for urgency were broken down as follows:-

(a) The matter cannot wait at the time when the need to act arises.
(b) Irreparable prejudice will result, if the matter is not dealt with straight away without delay.
(c) There is *prima facie* evidence that the applicant treated the matter as urgent.
(d) Applicant gives a sensible, rational and realistic explanation for any delay in taking action.
(e) There is no satisfactory alternative remedy.

It is my considered view that the matter is urgent. The applicant acted as soon as it became aware of the determination of the second respondent. Contrary to the assertion by Mr *Hamunakwadi,* the need to act did not arise with the placement of the junction but with the outcome of the dispute between the parties. The facts show that the applicant did not rest on its laurels but moved to apply for a review under HCH 4401/25 and then filed the urgent chamber application. There is ore involved which is a finite resource and it was mined by the applicant. The applicant has been mining on the disputed claims since the year 2000 and it stands to suffer financial prejudice by the continued locking of the premises where the ore is stored.

On failure to accord notice period, in my view, an urgent chamber application is a process that is characterised by very specific processes. What distinguishes it from an ordinary chamber application is the certificate of urgency as per R60(6). Where such certificate is present the matter must be submitted urgently to the duty judge by the registrar. The judge then manages the process in terms of R 60(8) (a) and (b). I do not perceive any prejudice suffered by the first respondent. In addition, the form for chamber applications does not have a time frame within which to respond.

On the general heading not mentioning the third respondent, in my view, this is neither here nor there. What is critical is that the third respondent was identified as a party in the founding affidavit. It is trite that where there is a discrepancy, the founding affidavit takes precedence. In addition, the third respondent is represented by legal counsel and there is therefore no prejudice suffered.

On failure to exhaust domestic remedies as provided for in s361 of the Mines and Minerals Act, [Chapter *21:05*], it is trite that an appeal and a review are two distinct processes. An aggrieved party may take either of the two avenues provided for. The first respondent's assertion is tantamount to forcing the applicant to appeal which is contrary to its rights.

I discount the second and third respondents assertions that the matter ought to be dismissed on the basis that the heading reads, ' urgent chamber court' application. The certificate of urgency reveals the correct nature of the application.

I also find no merit in the applicant's preliminary issue to the first respondent's opposing affidavit being invalid by virtue of being signed by the deponent. In my view, the resolution meets the legal requirements in that it identifies the authorising entity, the person being authorised and the litigation at hand.

On the merits, the only question that remains is whether or not the applicant has met the requirements for an interim interdict whose requirements have been set in a plethora of cases. In *Havire vs Arosume (pvt) Ltd,* SC-22-90 these were set as follows:-

1. A *prima facie* right even though it is open to doubt.
2. An infringement of such right or a well-grounded apprehension of such infringement.
3. A well-grounded apprehension of irreparable harm.
4. The absence of any other satisfactory remedy.
5. That the balance of convenience favours the granting of the interdict.

It is trite that the granting of an interim interdict is at the discretion of the court. In *Airfield Investments (Pvt) Ltd v Minister of Lands & Ors* 2004 (1) ZLR 511 (S) at 517 C – E wherein MALABA JA (as he then was) stated the following:

> "It must be borne in mind that an interim interdict is an extraordinary remedy, the granting of which is at the discretion of the court hearing the application for the relief. There are however, requirements which an applicant for interim relief must satisfy before it can be granted. In *LF Boshoff Investments (Pty) Ltd v Capetown Municipality* 1969 (2) SA 256 (C) at 267 A-F, CORBETT J (as he then was) said an applicant for such temporary relief must show:
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> > "(a) that, the right which is the subject matter of the main action and which he seeks to protect by means of interim relief is clear, or, if not clear, is *prima facie* established though open to some doubt.

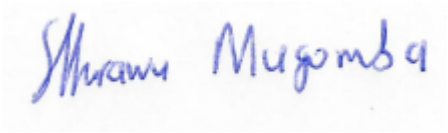
(b) that, if the right is only *prima facie,*established, there is a well-grounded apprehension of irreparable harm to the applicant if the interim relief is not granted and he ultimately succeeds in establishing his right;

(c) that the balance of convenience favours the granting of interim relief; and

(d) that the applicant has no other satisfactory remedy."

In my view, the applicant has made a case for the granting of an interim interdict. The applicant has been mining on the disputed claims since the year 2000 and it seeks to protect the ore that it mined. The first respondent has not refuted the assertion that it has never mined on the sites. This alone shows a *prima facie* right. The applicant's fear of irreparable harm is well funded. The applicant has been paying and obtaining certificates of registration since 1988 and there is no explanation how the shift occurred. The ore in question was not mined by the first respondent but by the applicant. The first respondent's claim over the ore is based solely on the decision of the second respondent and yet it has never mined on the claims. The applicant appears to have a good case on review and the balance of convenience tilts in its favour. Despite the conclusion reached by the second respondent on the shifting of positions, it appears to me that another court ought to re-look at this aspect especially given the length of time that the applicant has been mining. There are also two seemingly conflicting maps for the same site. The question is which one is the correct map?. Although Mr. *Hamunakwadi,* hammered home the issue of appeal versus a review to show that the applicant has other satisfactory remedy, I do no share the same view. The two procedures are distinct.

Accordingly, a provisional order as amended was granted.



Jiti Law Chambers, applicant's legal practitioners
Hamunakwadi and Nyandoro, first respondent's legal practitioners
Civil Division of the Attorney-General's Office, second and third respondents' legal practitioners